remarkable’ support, adding, ‘I have been so moved emotionally and deeply touched by the warmth and the support and the affection that they have shown. I could not leave here today without at least expressing my deepest gratitude to the shareholders’.On 27 December, Tata Sons served Mistry with a legal notice alleging ‘breach of confidentiality’. As Mistry’s petition filed before the NCLT had several sensitive and confidential company documents, including ‘minutes of board meetings, financial information and data’ attached to it, Tata Sons termed it as a ‘reckless failure’ on his part in carrying out his ‘fiduciary, legal and contractual duties’.

Completing the Severance

By the end of 2016, both Mistry and Wadia were removed from all Tata companies. The former, however, continued to be a director in Tata Sons. But his continued membership in it had become untenable for the same reasons that prompted his removal from other companies.

On 6 January 2017, Tata Sons confirmed that it would convene an EGM to remove Mistry from its board. On 11 January, Mistry filed another petition before the NCLT, alleging that Tata Sons’ proposed move violated the tribunal’s 22 December order and termed it a ‘wilful, deliberate and contumacious’ breach. Tata Sons, however, continued to maintain that there was ‘no contempt’ of the tribunal.

The same day, Mistry also wrote a letter to the Tata Sons board, opposing the proposed appointment of N. Chandrasekaran as chairman. He was to be officially named as Mistry’s successor on 12 January. As Mistry was still a director in the holding company, the agenda papers were sent to him. He called Chandrasekaran’s appointment ‘illegal’ as the ‘matter was still sub-judice’. However, Tata Sons’ lawyer Abhishek Manu Singhvi reasoned that the NCLT’s 22 December order meant that ‘no legal action or proceedings could be undertaken by the company, Tata Trusts or the Mistry family firms’; on the other hand, the holding company was ‘allowed to take company related decisions’.

On 12 January, Chandrasekaran was appointed as the Tata Sons chairman at the holding company’s board meeting. Mistry chose not to attend it. On 18 January, the NCLT dismissed the contempt petition filed by Mistry. While the bench held that Tata Sons’ actions ‘did not amount to contempt of court’, it still ‘gave liberty to Mistry family companies to file an affidavit